

25STCV23355 25STCV23355

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-15

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Case Number: 25STCV23355 Hearing Date: September 15, 2026 Dept: 414

25STCV23355 Pedro Armando Serna v. Christian Guardado, et al.

Tuesday, September 15, 2026

[TENTATIVE] ORDER

GRANTING IN PART PLAINTIFF'S MOTION TO COMPEL NONPARTY CELLCO PARTNERSHIP DBA VERIZON WIRELESS'S COMPLIANCE WITH DEPOSITION SUBPOENA FOR PRODUCTION OF BUSINESS RECORDS (8989)

I. ARGUMENTS

This

action arises from an alleged motor vehicle accident. Plaintiff requests an order to compel production of documents in compliance with a subpoena duces tecum served on non-party, CELLCO PARTNERSHIP DBA VERIZON WIRELESS, ("Verizon") for the production of Defendant's cell phone records.

Plaintiff

served the motion on the non-party and Defendants. No opposition has been filed.

II.

DISCUSSION

Discovery materials may be obtained from a person who is not a party to the action by serving a deposition subpoena for production of business records and things. (Code

Civ. Proc., § 2020.010.) A party seeking such records may move for an order to compel a non-party to comply with a deposition subpoena for production of records. (Code Civ. Proc., § 2025.480.)

The subpoena requests “All call detail records, text message logs, incoming and outgoing call records and subscriber information for [an identified number] for April 24, 2024.” (Khoubian decl., Ex. A.) The records are relevant to the issue of Defendant’s potential use of a cellphone at or around the time of collision.

Plaintiff requests imposition of monetary sanctions for misuse of the discovery process for the non-party’s failure to respond or to submit to an authorized method of discovery. (Cal. Code Civ. Procedure § 2023.010 (d).) The request is defective as the sanction request is not made in the notice. Requesting party must identify in the notice, the person, party and attorney against whom the sanction is sought as well as the type of sanction sought. (Code Civ. Proc., § 2023.040.) Due process requires that a party seeking sanctions give notice. (London v. Dri-Honing Corp. (2004) 117 Cal.App.4th 999, 1008.)

III. CONCLUSION

Based on the foregoing, Plaintiff’s motion is GRANTED. CELLCO PARTNERSHIP DBA VERIZON WIRELESS is ordered to produce without objection within 10 days documents that are responsive to the deposition subpoena served on June 12, 2026 (Khoubian decl., ¶ 3.) Plaintiff’s request for imposition of monetary sanctions is DENIED